

March 2, 2006



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and
Hazardous Materials
Safety Administration**

DOT-SP 14185

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of 30 inch cylinders containing greater than 0.1 kg of uranium hexafluoride which were not designed, fabricated, inspected, tested or marked in accordance with the ANSI, DOT, or ASME standard in effect at the time of manufacture. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED:
 - a. 49 CFR § 173.420 as it pertains to cylinders containing greater than 0.1 kg of uranium hexafluoride being designed, fabricated, inspected, tested and marked in accordance with the ANSI, DOT, or ASME standard in effect at the time of manufacture.
 - b. 49 CFR § 172.301(c) in that the overpacks do not need to be marked "DOT-SP 14185".

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5. BASIS: This special permit is based on the application of the DOE dated April 7, 2005 and the additional technical data submitted by Duratek on behalf of DOE dated December 5, 2005. Both documents were submitted in accordance with § 107.105 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Radioactive material, uranium hexafluoride non-fissile or fissile excepted	7	UN 2978	N/A
Radioactive material, uranium hexafluoride, fissile	7	UN 2977	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING -

1. This permit authorizes the one time transport of ETPP 30 and ETPP 30B cylinders, as described in the DOE application, from the East Tennessee Technology Park near Oak Ridge, TN to the Gaseous Diffusion Plant Environmental Restoration Facility near Portsmouth, OH.

2. Cylinders transported under this permit shall be contained within UX-30 overpacks in accordance with U.S. Nuclear Regulatory Commission Certificate of Compliance No. 9196, Revision 22, and U.S. Nuclear Regulatory Commission Authorization for Shipment dated December 2, 2005. Overpacks used for transport must be in compliance with all provisions of the certificate and the authorization letter.

b. COMMUNICATION - UX-30 overpacks must be marked, labeled and placarded in accordance with the requirements of the HMR. The overpacks do not need to be marked "DOT-SP 14185" in accordance with § 172.301(c).

8. SPECIAL PROVISIONS: A current copy of this special permit must be maintained at each facility where the package is offered for transportation.

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9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous

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materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.



for Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: RB/AM